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|     |                                                | <p>performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.)</p> <p>Plaintiff fails to meet its initial burden to establish Plaintiff’s performance or excuse for nonperformance of the contract it seeks to enforce. The only evidence provided is the conclusory statement from the declaration of Sandra Otero asserting that “National Funding has performed all conditions and promises required to be performed on the its part under the terms of the Settlement Agreement.” (ROA 18, ¶8.)</p> <p>Even if this was sufficient to meet Plaintiff’s initial burden on summary judgment, Defendant has established a triable issue of fact as to this element. Defendant has shown that Plaintiff was required to file a dismissal of the prior action within 10 days of receipt of the third payment. Defendant has shown that Plaintiff did not file the dismissal until 28 days after the third payment was made. Plaintiff argues it is nevertheless entitled to summary judgment because Plaintiff substantially complied with its obligations under the agreement. But the very authority Plaintiff relies upon recognizes that determination of substantial performance is a question of fact. (See <i>Magic Carpet Ride LLC v. Rugger Investment Group, LLC</i> (2019) 41 Cal.App.5th 357, 364.) Since Plaintiff has not shown that the undisputed facts establish that Plaintiff substantially performed its own obligations under the settlement agreement, it has not met its initial burden to prove each element of its cause of action for breach of contract. Accordingly, Plaintiff is not entitled to summary judgment.</p> <p><b>The Court now VACATES the Case Management Conference and sets this matter for a COURT TRIAL on April 23, 2027, at 11:00 a.m. in Department C12.</b></p> <p>Moving Party shall provide notice.</p> |
| 11. | <b>Reese vs. Day</b><br><br><b>25-01469806</b> | <ol style="list-style-type: none"> <li><b>1. Demurrer to Amended Complaint</b></li> <li><b>2. Motion to Compel Answers to Form Interrogatories</b></li> <li><b>3. Motion to Compel Answers to Special Interrogatories</b></li> <li><b>4. Motion to Compel Production</b></li> <li><b>5. Motion to Deem Facts Admitted</b></li> <li><b>6. Case Management Conference</b></li> <li><b>7. Order to Show Cause re: Dismissal (Failure to Serve)</b></li> </ol> <p>On April 17, 2026, Plaintiff’s counsel filed a Notice with the Court advising the Court of Plaintiff’s recent passing. ROA 119.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|  | <p>In that document, Plaintiff’s counsel asked the Court to take the Demurrer (and impliedly all other future motions) OFF CALENDAR and stay all current case deadlines pending the filing of a formal Motion for Substitution of Plaintiff pursuant to Code of Civil Procedure section 377.31.</p> <p>Plaintiff’s counsel stated they were attempting to contact the family/heirs of the Plaintiff to identify the proper successor in interest to proceed with this lawsuit.</p> <p>The Court continued the pending Demurrer to May 22, 2026, (ROA 126) to join the current discovery motions. The Court was mindful that a mere one-month continuance might not be enough time to identify a successor in interest.</p> <p>In the interim, Plaintiff’s counsel filed a Motion to be Relieved as Counsel.</p> <p>The Court is unwilling at this time to relieve Plaintiff’s counsel without the decision about a Substitution of Plaintiff having been made.</p> <p><b>The Court now takes ALL MOTIONS including the Demurrer, the discovery motions AND the June 12, 2026, Motion to be Relieved as Counsel OFF CALENDAR and STAYS this case as originally requested by Plaintiff’s counsel in ROA 119.</b></p> <p><b>The CMC and OSC re: Dismissal (Failure to Serve Fred Day) is also taken OFF CALENDAR.</b></p> <p><b>The Court now calendars an OSC re: Stay of Case (Status of Successor in Interest) for October 22, 2026, at 9:30 a.m. in Department C12.</b></p> <p><b>A Status Report shall be filed by Plaintiff’s counsel before October 8, 2026.</b></p> <p>Clerk to give notice.</p> |
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